

PETITION FOR EXPUNGEMENT AND SEALING OF RECORDS AFTER ACQUITTAL
UNDER WEST VIRGINIA CODE SEC. 61-11-25

IN THE CIRCUIT COURT OF

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COUNTY, WEST VIRGINIA

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
Petitioner.

Civil Action No. (assigned by the circuit clerk)

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1. JURISDICTION, VENUE AND CASE IDENTIFIERS

This is a civil petition under West Virginia Code Sec. 61-11-25. The filing destination is the circuit court in the county in which the charges were filed, including when the underlying charge was handled in a municipal or magistrate court.

Circuit court county where the charges were filed

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Underlying court that handled the charge

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Underlying court case number

.....

The circuit clerk assigns the civil action number. The petitioner does not complete the court's number or order-entry fields.

2. PETITIONER

Full legal name of petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth of petitioner: 1968-12-31

Mailing address of petitioner: 11884 Upper Notch Crossing Road, Apartment 14B, Morgantown, West Virginia 26501-2214

Telephone number of petitioner: (681) 555-0199 ext. 4417

Email address of petitioner: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

3. ACQUITTAL AND RECORD FACTS

The petitioner was found not guilty in the case identified above. The participant must compare every statement below with the certified acquittal order and the complete case record before signing.

Date of arrest or citation

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Arresting or charging law-enforcement agency

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Date of the actual acquittal order

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At least 60 days since the actual acquittal order

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CHARGE SCHEDULE - include every actual charge from the certified case record. Use a continuation page if the record contains more charges than these lines, and do not omit one.

Charge 1 - actual charge and statute

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Charge 1 - disposition shown by the certified order

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Charge 2 - actual charge and statute

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Charge 2 - disposition shown by the certified order

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Charge 3 - actual charge and statute

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Charge 3 - disposition shown by the certified order

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Charge 4 - actual charge and statute

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Charge 4 - disposition shown by the certified order

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Charge 5 - actual charge and statute

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Charge 5 - disposition shown by the certified order

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Charge 6 - actual charge and statute

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Charge 6 - disposition shown by the certified order

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Charge 7 - actual charge and statute

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Charge 7 - disposition shown by the certified order

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Charge 8 - actual charge and statute

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Charge 8 - disposition shown by the certified order

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4. ELIGIBILITY AND SCOPE

The participant supplies each answer below from the complete record. The petition does not create a court finding or a prosecutor approval.

Prior felony conviction: participant's required answer

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Related current charge or proceeding: participant's required answer

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Statutory exclusions and offense category: participant's required answer

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Other charges arising from the same transaction or occurrence

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Records and matters for which expungement and sealing are requested

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5. REQUEST FOR RELIEF

After the petitioner supplies and verifies the case facts above, the petitioner requests expungement and sealing of records relating to the arrest, charges and matters within the scope West Virginia Code Sec. 61-11-25 permits the court to reach.

6. COURT PROCEDURE

No filing fees or costs are charged for an action under West Virginia Code Sec. 61-11-25(g). The court may set a discretionary hearing and, if it does, controls notice to the county prosecuting attorney and the arresting or charging agency. The court and agencies control any post-order certification and treatment.

Hearing date set by the court

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Judge signature and court order entry

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Signature of petitioner

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Date petitioner signs

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The petitioner signs only after reading the certified order, complete charge schedule and clerk's current filing directions.